

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

April 17, 2025

**Judge R. Shawn Nelson
Department C19**

Department C19 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5219. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
1:30 p.m.		
1	Carrillo v. Tesla, Inc.	Defendant Tesla, Inc.'s motion to compel binding arbitration is GRANTED . Defendant's request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d)). <u>General Law</u>

Both the Federal Arbitration Act and the California Arbitration Act require the existence of a valid Arbitration Agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and C.C.P. §1281.2). The Federal Arbitration Act ("FAA") provides that an arbitration agreement in any "contract evidencing a transaction involving commerce . . . shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for revocation of any contract." (9 U.S.C. § 2.) "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972). Defendant must also show plaintiff's refusal to submit to arbitration, and proof that the arbitration agreement covers the dispute at issue. (See *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 642).

In this matter, Defendant produced two separate arbitration agreements: the Motor Vehicle Order Agreement arbitration agreement ("Order arbitration agreement"), which Plaintiffs signed on 11/4/23 by electronically accepting the terms, and the Retail Installment Sale Contract arbitration agreement, which the Plaintiffs signed on 11/8/23. (See Kim Decl., ¶¶ 4, 13, and exhibits 1 and 2, respectively).

The Order arbitration agreement provides that it applies to any dispute between Plaintiff and Tesla, Inc. This would include the three causes of action for Violation of Song-Beverly Act in Plaintiff's complaint. (See Compl., *generally*).

Plaintiffs do not dispute executing both arbitration agreements, or that they apply to the claims asserted in this action. Rather, Plaintiffs contend that the arbitration provisions are procedurally and substantively unconscionable.

Accordingly, Defendant met its initial burden.

Unconscionability

Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (*Id.*) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (*Id.*) "The party resisting arbitration bears the burden of proving unconscionability." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247.)

a. Procedural Unconscionability

"Procedural unconscionability focuses on the elements of oppression and surprise." (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 177.) "Oppression arises from an inequality of bargaining power